



SPONSOR: Rep. Lynn & Rep. Snyder-Hall & Rep. Bush &
Sen. Hoffner
Reps. Harris, Ross Levin, Gorman, Lambert; Sen.
Seigfried

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 35

AN ACT PROPOSING AN AMENDMENT TO ARTICLE I OF THE DELAWARE CONSTITUTION RELATING TO
PROHIBITION OF THE DEATH PENALTY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members
elected to each house thereof concurring therein):

1 Section 1. Amend Article I of the Delaware Constitution by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 11. Excessive bail or fines; cruel punishments; prohibition of death penalty; health of prisoners.

4 ~~Section 11.~~ Excessive bail shall not be required, nor excessive fines imposed, nor the death penalty imposed; nor
5 cruel punishments inflicted; and in the construction of jails a proper regard shall be had to the health of prisoners.

6 § 12. Right to bail; access to accused.

7 ~~Section 12.~~ All prisoners shall be bailable by sufficient ~~sureties, unless for capital offenses when the proof is~~
8 ~~positive or the presumption great~~; sureties; and when persons are confined on accusation ~~for such offenses~~ their friends and
9 counsel may at proper seasons have access to them.

SYNOPSIS

This Act is the first leg of a constitutional amendment to prohibit the imposition of the death penalty. The Act also
removes reference to "capital offenses" in Section 12 of Article I because that language is inconsistent with a constitutional
prohibition on the death penalty. The words "Section 11" and "Section 12" are struck to accord with the passage of a first
leg constitutional amendment on technical corrections in the 152nd General Assembly (HB430), and the expected passage
of the second leg in the 153rd General Assembly.

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of
the same changes after the next general election by the next General Assembly. This Act requires a greater than majority
vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the
members elected to each house of the General Assembly to amend the Delaware Constitution.